

Chief Justice's Court

Case :- WRIT - C No. - 47523 of 2017

Petitioner :- Mohd. Amir

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Lakshmi Kant Pandey, Arvind Dubey

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Manoj Kumar Gupta, J.

Place before appropriate Bench on 12.10.2017, as fresh matter.

Order Date :- 10.10.2017

VMA

(Dilip B Bhosale, CJ)

(M.K. Gupta, J)

Court No. - 39

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Hon'ble Jayant Banerji, J.

The petitioner who claims to be a tenant moved an application before respondent-Vidhyut Urban Vitaran Khand, Allahabad¹ for providing a new electric connection. The permission was denied by the Sub-Divisional Officer on the ground that the petitioner has not obtained consent/no objection of the landlord.

Learned counsel appearing for the petitioner has submitted that owner or occupier, which includes a tenant of the premises, has a statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling the requirements set out under the provisions of Electricity Act, 2003² and the U.P. Electricity Supply Code, 2005³ and therefore, the application for grant of electricity connection cannot be refused by the licensee merely on the ground that there is no consent of the landlord. In support of his contention, learned counsel has placed reliance upon a Division Bench judgment of this Court rendered in Writ-C No.28295 of 2014 (**Seema Mansoor Vs. U.P. Power Corporation Ltd and 3 others**) decided on 26 May 2014.

Learned counsel appearing for the respondent-Corporation has, however, submitted that the petitioner has still to ensure compliance of the provisions of the Act and Supply Code and has to submit an indemnity bond as contained in the Supply Code.

1 The Corporation.

2 The Act 2003

3 Supply Code .

It is not in dispute that the permission for grant of new electric connection has been refused only on the ground that the landlord has neither given consent nor 'no objection'. This issue was examined by the Division Bench in **Seema Mansoor** and after examining the provisions of the Act and Supply Code, the Division Bench observed as follows:

“From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code, 2005. Thus an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord.

Apart from above giving interpretation to the provision suggested by the learned counsel for the respondents would tantamount to nullifying the benefits and protection extended to tenant under the Rent Control Act. A scrupulous landlord would get the electricity connection disconnected, of the premises owned by him and in occupation of tenant, and shall never give his no objection to fresh electricity connection to the tenant forcing him to vacate the premises making the provisions of the Rent Control Act nugatory. Such interpretation shall not only be in the teeth of the provisions of the Act but also opposed to public policy.

The Division Bench judgment in the case of **Ravi Shankar Giri and Writ Petition No. 71425 of 2013, Iftikhar Ahsan Vs. State of U.P (supra)** relied upon by the learned counsel for the respondents were passed without noticing the provisions of clause 42 and 43 of the Electricity Act, the definition of the owner contained in the Code 2005 and Annexure 4.2 as also Clause 4.4 (a)(i) and Annexure 4.2 of the Code 2005. The above two judgments having failed to note statutory provisions cannot be said to lay down correct law.

In view of the aforesaid facts and discussions, the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection for supply of electrical energy and the same could not have been refused solely for want of consent of the owner/landlord of the premises.

Accordingly, the petitioner is entitled to the relief claimed. Writ petition stands allowed. A mandamus is issued commanding the respondents to consider and grant electricity connection to the petitioner subject to his making application in accordance with law and the procedure prescribed and giving indemnity bond and

fulfilling all other requirements”.

The Division Bench held that a tenant or occupier of the premises has a legal right to obtain electricity connection and the licensee is under an obligation to provide the connection. It cannot be refused solely for want of consent of the owner/landlord of the premises but an indemnity bond has to be submitted by the petitioner.

In such circumstances, it is not possible to sustain the order, passed by the Sub-Divisional Officer rejecting the application filed by the petitioner for grant of electric connection. The order is accordingly set aside. It shall, however, be open to the petitioner to submit a fresh application and the Court has no reason to doubt that in case an application is filed by the petitioner, the same shall be decided in accordance with law .

The writ petition is **allowed** to the extent indicated above.

Order date: 12.10.2017

sfa/

(Dilip Gupta, J)

(Jayant Banerji, J)